

SENATE No. 606

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for further testing after a combined sewage overflow event.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 606

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 606) of Barry R. Finegold for legislation relative to further testing after a combined sewage overflow event. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 489 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for further testing after a combined sewage overflow event.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 43A of chapter 21 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection (f) the following subsection:-

3 (f½) The department, in consultation with the department of public health, shall establish
4 quality assurance project plan standards for the testing of water bodies and waterways for
5 bacteria or other pollutants following a discharge from a permittee's combined sewage overflow
6 outfall.

7 Testing shall be conducted by the department or its designee, subject to appropriation,
8 using the department's quality assurance project plan, within a reasonable amount of time after a
9 combined sewage overflow notification as determined by the department based on the time

elapsed since the combined sewage overflow and the flow rate of the water body or waterway. Testing shall be conducted at multiple locations downstream from each combined sewage overflow outfall. Testing may be suspended from December to March, inclusive, based on weather conditions as determined by the department.

The department shall compile the data from each combined sewage overflow and produce a report annually, not later than January 31. The department, in consultation with the department of public health, shall use this data to create a predictive model for water quality following a combined sewage overflow.

The department shall use the data to determine areas with high bacteria content and shall require any permittee with bacteria content over 235 colony forming units per 100 milliliters to develop a combined sewage overflow mitigation plan, which shall be subject to approval by the department. Permittees developing an approved mitigation plan shall be prioritized in competitive applications for funds from the commonwealth related to storm water.

SECTION 2. Subsection (g) of said section 43A of said chapter 21, as so appearing, is hereby further amended by striking out the first 2 paragraphs and inserting in place thereof the following paragraph:-

The department shall, subject to appropriation: (i) require permittees to report the volume of discharge from its outfall; (ii) assist permittees with installing accurate metering equipment to measure discharge from its outfall; and (iii) issue public advisories within timeframes established by subsections (c) and (d).